

Inha University in Tashkent

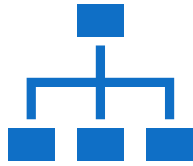
Theme 5: The role of Parliament – Oliy Majlis in the political system of Uzbekistan

Tashkent – 2024

Outline:



Brief overview on the development
of **Parliamentarianism** in
Uzbekistan



Organizational structure of Oliy
Majlis



The powers of Chambers of
Parliament



The process of lawmaking

The Concept of Parliament

- The term “parliament” is derived from French verb *parler* that means “talk”
- The modern concept of parliamentary government emerged in the Great Britain (1707–1800) and in Sweden during the Age of Liberty (1718–1772)
- Parliament has three functions: representing the electorate, making laws, and overseeing the government’s activity





Historical Development of Parliamentarianism in Uzbekistan

- ❖ The supreme state representative body shall be the Oliy Majlis of the Republic of Uzbekistan that exercises legislative power (Art. 91)
- ❖ A new, post-soviet stage of establishment of a national parliament in Uzbekistan began after declaration of independence on September 1, 1991.
- ❖ It was a complicated but successful and dynamic period
- ❖ It was a period of transition from one legal environment to a completely different one

The Historical Activity of Oliy Majlis

- **1991-1994 yy.** During the first period the Constitution of the Republic of Uzbekistan was adopted. It served as a legal basis for the creation of new bodies of the governmental structure, building a democratic civil society with a socially oriented economy.
- **1995-2004 yy.** The second period began in 1995 and lasted ten years. A new unilateral parliament of the Republic of Uzbekistan, the *Oliy Majlis*, was established in place of the Supreme Council.



The Historical Activity of Oliy Majlis



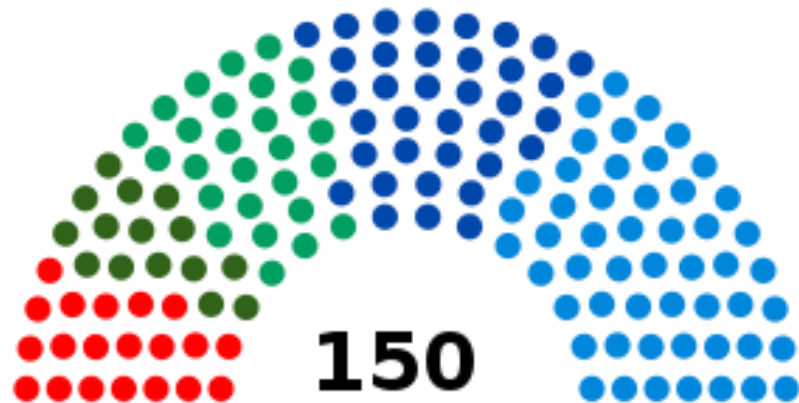
- The unicameral parliament of that period was not a professional one (as a rule parliament convened four times a year). 240 laws were adopted, 1573 amendments were made.
- **From 2005 up now.** Transition from the unicameral to the bicameral parliament. The highest legislative body became a classically professional and representative body with a broad range of functions and powers. A joint activity of the Legislative Chamber and the Senate of the *Oliy Majlis* in 2005-2007 resulted in the adoption of 96 laws.

The Legislative Chamber



- The Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan shall consist of 150 deputies elected according to the law.
- Before 2019, 15 deputies should have been elected from Ecological Movement of Uzbekistan in accordance with the legislation

Political Groups in Legislative Chamber



In the last elections of 2019-2020, the seats were distributed as follows:

- Liberal Democratic Party of Uzbekistan - 53 seats
- Democratic Party "Milliy Tiklanish" - 36 seats
- Social-Democratic Party "Adolat" - 24 seats
- People's Democratic Party of Uzbekistan - 22 seats
- Ecological Party of Uzbekistan - 15 seats

The Structure of the Board Legislative Chamber

Speaker of the Legislative Chamber - Ismailov Nurdinjon Muydinhonovich

First Deputy Speaker of the Legislative Chamber of the Oliy Majlis - Saidov Akmal Kholmatovich

The Deputy Speaker of the Legislative Chamber, the head of the faction of the Liberal Democratic Party of Uzbekistan - Khaitov Aktam Ahmadovich

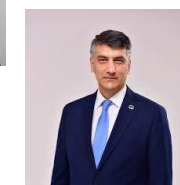
The Deputy Speaker of the Legislative Chamber, the head of the faction of DP "Milliy Tiklanish" - Kadirov Alisher Keldievich

The Deputy Speaker of the Legislative Chamber, the head of faction of the People's Democratic Party of Uzbekistan - Inoyatov Ulugbek Ilyasovich

The Deputy Speaker of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan, the head of faction of the Social Democratic Party "Adolat" - Ibragimova Zuhra Ametovna

The Deputy Speaker of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan, the head of faction of the Ecological Party of Uzbekistan - Gapporov Khairillo Lutpillaevich

The Deputy Speaker of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan for coordination of information activities in the Legislative Chamber and interaction with the media - Tojiev Odiljon Fotihjon ugli



The Senate

- The Senate of the Oliy Majlis shall be the chamber of territorial representation and consist of members (senators) of the Senate.
- Members of the Senate shall be elected in equal quantity – per four persons – from the Republic of Karakalpakstan, regions and the city of Tashkent.
- Nine members of the Senate shall be appointed by the President of the Republic of Uzbekistan among the most authoritative citizens with large practical experience and special merits in the sphere of science, art, literature, manufacture and other spheres of state and public activity.



The Structure of the Board of Senate

- Narbaeva Tanzila Kamalovna - Chairman of the Senate of the Oliy Majlis of the Republic of Uzbekistan
- Safoev Sodiq Solixovich - First Deputy Chairman of the Senate of the Oliy Majlis of the Republic of Uzbekistan
- Orinbayev Amanbay Tleubayevich - Deputy Chairman of the Senate of the Oliy Majlis of the Republic of Uzbekistan, Chairman of the Jogorku Kenesh of the Republic of Karakalpakstan
 - Alimov Ravshanbek Azadbekovich - Chairman of the Senate Committee on Foreign Affairs, Foreign Economic Relations, Foreign Investment and Tourism
 - Gadoev Erkin Fayzievich - Chairman of the Senate Committee on Budget and Economic Reforms
 - Burkhanov Kutbidin Nukritdinovich - Chairman of the Defense and Security Committee of the Senate
 - Umarov Nariman Madjitovich - Chairman of the Senate Judiciary and Anti-Corruption Committee of the Senate
 - Iminov Odiljon Karimovich - Chairman of the Senate Committee on Youth, Culture and Sports
 - Tajiev Baxadir Sadullaevich - Chairman of the Senate Committee on Agriculture, Water Resources and Environment
 - Alikhanov Boriy Batirovich - Chairman of the Senate Committee on Development of the Aral Sea Region
 - Kadirxanova Malika Akbarovna - Chairman of the Committee on Women and Gender Equality of the Senate



The joint jurisdiction of the chambers



- 1) adoption of the Constitution of the Republic of Uzbekistan, introducing amendments;
- 2) adoption of the Constitutional laws and laws of the Republic of Uzbekistan, introducing amendments;
- 3) ratification and denouncement of international treaties;
- 4) adoption of decision on holding a referendum of the Republic of Uzbekistan and designation the date of its holding;
- 5) determination of the guidelines of national and foreign policies of the Republic of Uzbekistan, and adoption of strategic state programs;
- 6) determination of the structure and powers of the bodies of the legislative, executive and judicial authorities of the Republic of Uzbekistan;
- 7) admission of new state formations into the Republic of Uzbekistan and approval of decisions to secede from the Republic of Uzbekistan;
- 8) legislative regulation of customs, currency and credit systems;
- 9) approval of the state budget of the Republic of Uzbekistan submitted by the Cabinet of Ministers of the Republic of Uzbekistan, introducing amendments;
- 10) determination of the maximum size of government debt of the Republic of Uzbekistan;
- 11) determination of taxes and other compulsory payments;



- 12) legislative regulation of the administrative and territorial structure, and alteration of the boundaries of the Republic of Uzbekistan;
- 13) formation, annulment and renaming of districts, towns, cities and regions, and alteration of their boundaries;
- 14) institution of state awards and titles;
- 15) formation of the Central Election Commission of the Republic of Uzbekistan;
- 16) election of an Authorized Person of the Oliy Majlis of the Republic of Uzbekistan for Human Rights (Ombudsman) and the Deputy of Ombudsman;
- 17) ratification of decree of the President of the Republic of Uzbekistan on announcement of condition of war in case of attack on the Republic of Uzbekistan or necessity of implementation of contractual obligations on mutual defense from aggression;
- 18) ratification of decrees of the President of the Republic of Uzbekistan on announcement of general and partial mobilization, introducing, prolongation or discontinuance of the state of emergency;
- 19) hearing the annual National Report on anti-corruption in the Republic of Uzbekistan;
- 20) conducting parliamentary investigation;
- 21) exercising of other powers specified by the Constitution and laws.

The exclusive powers of the Legislative Chamber

- 1) monitoring the execution of the State budget of the Republic of Uzbekistan;
- 2) hearing the report of the Chamber of Accounts of the Republic of Uzbekistan;
- 3) consideration and approval of the candidature of the Prime Minister of the Republic of Uzbekistan on representation of the President of the Republic of Uzbekistan;
- 4) hearing the reports of Prime Minister of the Republic of Uzbekistan on current issues of social and economic development of the country as well as the members of the Cabinet of Ministers on issues of their activities;
- 5) consideration and approval of the candidates to the Cabinet of Ministers of the Republic of Uzbekistan on representation of the President of the Republic of Uzbekistan;
- 6) hearing the annual report of the Cabinet of Ministers of the Republic of Uzbekistan on the most crucial issues of social and economic life of the country;



The exclusive powers of the Legislative Chamber

- 7) submission of parliamentary inquiries to the officials of state bodies and implementation of other forms of parliamentary control;
- 8) election of the Speaker of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan and the deputies of Speaker, chairpersons of committees and their deputies;
- 9) addressing the issues of depriving a deputy of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan from immunity on representation of the Prosecutor General of the Republic of Uzbekistan;
- 10) adoption of decisions on matters relating to the organization of the chamber's activities and its internal order;
- 11) adoption of the resolutions on certain issues in the field of political, social and economic life, as well as the issues of national and foreign policy of the state;
- 12) exercising other powers stipulated by the Constitution and laws.

The Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan may be entitled to dissolve itself by the majority of not less than two-thirds of the total number of deputies.



The exclusive powers of the Senate

- 1) election the Constitutional Court, the Supreme Court, the Supreme Judicial Council of the Republic of Uzbekistan, the head of the republican anti-corruption body and the head of the republican anti-monopoly body on representation of the President of the Republic of Uzbekistan;
- 2) consideration and approval of the candidates for the posts of the Prosecutor General of the Republic of Uzbekistan and the chairperson of the Chamber of Accounts of the Republic of Uzbekistan on representation of the President of the Republic of Uzbekistan;
- 3) conducting consultations on the candidature proposed by the President of the Republic of Uzbekistan for the post of the chairperson of State Security Service of the Republic of Uzbekistan;
- 4) on the nomination of the President of the Republic of Uzbekistan appointment and dismissal of the heads of diplomatic missions and other representations of the Republic of Uzbekistan in foreign states and international organizations on representation of the President of the Republic of Uzbekistan;
- 5) appointment and relief of the Chairperson of the Board of the Central Bank of the Republic of Uzbekistan on representation of the President of the Republic of Uzbekistan
- 6) ratification of decrees of the President of the Republic of Uzbekistan on the establishment and abolition of ministries and other republican bodies of executive power;
- 7) adoption of amnesty acts on representation of the President of the Republic of Uzbekistan;



- 8) hearing the reports of the Prosecutor General of the Republic of Uzbekistan and the Chairperson of the Board of the Central Bank of the Republic of Uzbekistan;
- 9) hearing the reports of the heads of diplomatic missions and other representations of the Republic of Uzbekistan in foreign states and international organizations on the issues of their activities;
- 10) submission of parliamentary inquiries to the officials of state bodies and carrying out other forms of parliamentary control;
- 11) assistance to the representative bodies of state power on the ground in the performance of their activities;
- 12) rescission of the decisions of representative bodies of state power on the ground in the case of their inconsistency with the norms of legislation;
- 13) election of the Chairperson of the Senate of the Oliy Majlis of the Republic of Uzbekistan and his deputies, chairpersons of committees and their deputies;
- 14) adoption of decisions on deprivation of a member of the Senate of the Oliy Majlis of the Republic of Uzbekistan from immunity on the representation of the Prosecutor General of the Republic of Uzbekistan;
- 15) adoption of decisions on the matters relating to the organisation of chamber's activities and its internal organisation;
- 16) adopting resolutions on certain issues in the field of political, social and economic life, as well as on issues of national and foreign policy;
- 17) exercising the powers of the Oliy Majlis to legislate, with the exception of the Constitution and constitutional laws, during the dissolution of the Legislative Chamber;
- 18) exercising other powers stipulated by the Constitution and laws.

Initiation of law

- The right to initiate legislation shall be vested:
 - the President of the Republic of Uzbekistan
 - the Republic of Karakalpakstan through its highest representative body of state authority
 - deputies of the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan
 - the Cabinet of Ministers of the Republic of Uzbekistan
 - the Constitutional Court
 - the Supreme Court
 - the Procurator-General of the Republic of Uzbekistan



The process of lawmaking

- The law shall come into effect when it is adopted by the Legislative Chamber, approved by the Senate, signed by the President of the Republic of Uzbekistan and issued in the official publications in specified by law procedure. The law, adopted by the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan, not later than ten days from the date of adoption, shall be addressed to the Senate of the Oliy Majlis of the Republic of Uzbekistan. The law shall be considered by the Senate of the Oliy Majlis of the Republic of Uzbekistan within sixty days and, if approved, shall be passed to the President of the Republic of Uzbekistan for signature and promulgation no later than ten days.
- In the case that the Senate of the Oliy Majlis of the Republic of Uzbekistan does not make a decision on approval or rejection of the law within sixty days, it shall be sent to the President of the Republic of Uzbekistan for signature and promulgation by the Legislative Chamber.
- The President of the Republic of Uzbekistan, within sixty days, shall sign the law and promulgate it. The law, rejected by the Senate of the Oliy Majlis of the Republic of Uzbekistan, shall be returned to the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan.



The process of lawmaking

- In case of the second consideration of the rejected by the Senate of the Oliy Majlis of the Republic of Uzbekistan law and approval the law by the Legislative Chamber, by a majority in two thirds of votes of the total number of deputies, it shall be considered to be adopted by the Oliy Majlis of the Republic of Uzbekistan and addressed by the Legislative Chamber to the President of the Republic of Uzbekistan for signing and promulgation.
- On the law rejected by the Senate of the Oliy Majlis of the Republic of Uzbekistan the Legislative Chamber and the Senate, on a par with, may form from among deputies of the Legislative Chamber and members of the Senate a conciliatory commission for overcoming the occurred disagreements. At adoption by the chambers proposals of the conciliatory commission the law shall be subject to consideration in ordinary procedure.
- The President of the Republic of Uzbekistan shall have the right to return the law with his objections to the Oliy Majlis of the Republic of Uzbekistan.
- In case of approval of the law in the earlier adopted edition by a majority not less than two thirds of votes of the total number accordingly of deputies of the Legislative Chamber and members of the Senate of the Oliy Majlis of the Republic of Uzbekistan, the law shall be subject to signing by the President of the Republic of Uzbekistan within fourteen days and promulgation.
- Publication of laws and other normative-legal acts shall be an obligatory condition for their application.



Thank you for your attention!